



U.S. Department
of Transportation

Research and
Special Programs
Administration

400 Seventh Street, S.W.
Washington, D.C. 20590

DOT-E 8702

1. Inland Container Corporation, Indianapolis, Indiana, is hereby granted an exemption from those provisions of this Department's Hazardous Materials Regulations specified in paragraph 5 below to manufacture, mark, and sell the packaging described in paragraph 7 below for use in the transportation of the various hazardous materials (solids) described in paragraph 3 below in commerce subject to the requirements specified herein. This exemption authorizes the manufacture, marking and sale of a non-DOT specification fiberboard box of 300-pound maximum capacity for shipment of various hazardous materials (solids) for which DOT-21C fiber drum is prescribed, and provides no relief from any regulation other than as specifically stated.
2. BASIS. This exemption is based on Inland Container Corporation's application dated August 3, 1981, and subsequent letters dated December 9, 1981, and January 4, 1982, furnishing additional information, and submitted in accordance with 49 CFR 107.103 and the public proceeding thereon.
3. HAZARDOUS MATERIALS (Descriptor and class). Certain flammable solids, corrosive solids, and class B poisonous solids presently authorized to be packaged in a DOT Specification 21C fiber drum (see paragraph 5).
4. PROPER SHIPPING NAME (49 CFR 172.101). As specified in 49 CFR 172.101; or the specific chemical name or generic commodity description, as appropriate.
5. REGULATION AFFECTED. 49 CFR 173.154; 173.234; 173.245b; 173.365; 173.370; 173.373; 173.374; 173.375; 173.377.
6. MODES OF TRANSPORTATION AUTHORIZED. Motor vehicle, rail freight.
7. SAFETY CONTROL MEASURES. Packaging prescribed is a non-DOT specification fiberboard box, constructed of inner and outer liners of 450-pound test doublewall fiberboard (B/C flute), as depicted in petitioner's application and drawings dated August 3, 1981. Box must be fitted with an inside bag of polyethylene film of 0.004-inch minimum thickness and contain a maximum net weight of 300 pounds of product. Box, closed as for shipment, must be capable of satisfactorily withstanding the performance tests prescribed in 49 CFR 178.224-2. When shipped containing materials classed as Poison B, boxes must be marked "NRC" (non-reusable container).
8. SPECIAL PROVISIONS.
 - a. Shippers may use the packaging(s) covered by this exemption pursuant to 49 CFR 173.22a.
9. REPORTING REQUIREMENTS. Any incident involving loss of contents of the package must be reported to the Office of Hazardous Materials Regulation as soon as practicable.
10. EXPIRATION DATE. February 10, 1984.

Issued at Washington, D.C.:



Alan L. Roberts
Associate Director for
Hazardous Materials Regulation
Materials Transportation Bureau

MAR 1 1982

(DATE)

Address all inquiries to: Associate Director for Hazardous Materials Regulation,
Materials Transportation Bureau, Research and Special Programs Administration,
U.S. Department of Transportation, Washington, D.C. 20590. Attention: Exemptions
Branch.

Dist: FHWA, FRA.